

2. The Second Schedule to the Ballot Act, 1872, shall have effect as if the following form were inserted therein :—

“ Form of declaration to be made by a person assisting a blind voter to vote.

“ I, _____ of _____
having been requested to assist _____, whose number
on the register is _____, to record his vote, hereby declare that
* I am entitled to vote at this election, or * that I am the
† _____ of the said voter and have attained the age
of twenty-one years, and that I have not previously assisted any
blind person [except _____ of _____]
]† to vote at the election now taking place.

** Strike out
inappro-
priate words.*

*† State the
relationship
of the com-
panion to the
voter.*

*‡ Strike out
the words in
square
brackets, if
inappro-
priate.*

(Signature of the person
making the declaration)

(date).....

“ I, the undersigned, being the presiding officer for
the _____ polling station for the [county]‡
[borough]‡ of _____, hereby certify that the
above declaration, having been first read to the above-named
declarant, was signed by the declarant in my presence.

(Signature).....

(date)..... : (hour)

“ N.B.—If the person making the above declaration
knowingly and wilfully makes therein a statement false in a
material particular, he will be guilty of an offence.”

CHAPTER 28.

An Act to enable Municipal Corporations to
provide for the audit of their accounts and
of the accounts of their officers by district
auditors or by other qualified accountants.

[18th July 1933.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) In any borough in which the provisions of this subsection are adopted—

- (a) the accounts of the corporation and the accounts of the borough treasurer and other officers of the corporation shall, instead of being audited by borough auditors in accordance with the Municipal Corporations Act, 1882, be audited by district auditors in like manner as accounts of an urban district council and its officers, and the enactments relating to audit by district auditors and to all matters incidental thereto and consequential thereon shall apply in like manner as if they were herein re-enacted with the necessary modifications; and
- (b) sections twenty-five, twenty-six and twenty-seven of the Municipal Corporations Act, 1882, and section two hundred and forty-six of the Public Health Act, 1875, shall cease to be in force.

Power of
borough
council to
vary exist-
ing pro-
visions as
to audit.
45 & 46
Vict. c. 50.

(2) In any borough in which the provisions of this subsection are adopted—

- (a) the accounts of the corporation and the accounts of the borough treasurer and other officers of the corporation shall, instead of being audited by borough auditors as aforesaid, be audited by one or more auditors appointed in accordance with the Schedule to this Act, and the provisions of that Schedule shall have effect with respect to the qualifications, powers and duties of any auditor so appointed; and
- (b) section twenty-five of the Municipal Corporations Act, 1882, shall cease to be in force, and references to borough auditors in section twenty-seven of that Act and to auditors of the borough in section two hundred and forty-six of the Public Health Act, 1875, shall be construed as references to the auditor or auditors so appointed.

38 & 39
Vict. c. 55.

(3) The provisions of subsection (1) or of subsection (2) of this section may be adopted in any borough

by means of a resolution of the council of the borough in that behalf, being a resolution—

- (a) passed by a majority consisting of not less than two-thirds of the members of the council present and voting at a meeting called for the purpose, of which not less than one month's previous notice has been given to every member of the council; and
- (b) confirmed by the council at a regular meeting held not less than one month after the passing of the resolution.

(4) Any resolution passed and confirmed for the purposes of this section shall take effect in the case of a resolution adopting the provisions of subsection (1) of this section as from such date as the Minister of Health may by order direct and, in the case of a resolution adopting the provisions of subsection (2) of this section, as from such date as may be specified in the resolution.

Inspection
and copies
of reports.

2. Every local government elector for a borough in which the provisions of subsection (1) or subsection (2) of section one are adopted may at all reasonable times, without payment, inspect and take copies of and extracts from any report of the district auditor or other auditor or auditors thereunder appointed.

Short title
and extent.

3.—(1) This Act may be cited as the Municipal Corporations (Audit) Act, 1933.

(2) This Act shall not extend to Scotland or Northern Ireland.

Section 1.

SCHEDULE.

ALTERNATIVE PROVISIONS WHICH MAY BE ADOPTED AS TO AUDITORS.

1. The auditor or auditors shall be appointed in writing under the seal of the corporation for such period and on such terms as to remuneration and otherwise as the council of the borough think fit.

2. No person shall be qualified to be so appointed unless he is a member of one or more of the following bodies, namely :—

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants and Auditors;

The Society of Accountants in Edinburgh;

The Institute of Accountants and Actuaries in Glasgow;

The Society of Accountants in Aberdeen;

The London Association of Certified Accountants Limited;

The Corporation of Accountants Limited.

3. Any auditor so appointed shall be entitled to require from any officer of the corporation such documents, information and explanations as may be necessary for the performance of his duties.

4. Any auditor so appointed shall include in or annex to any certificate given by him with respect to the accounts audited by him such observations and recommendations (if any) as he thinks necessary or expedient to make with respect to the accounts or any matter arising thereout or in connection therewith.

CHAPTER 29.

An Act to amend subsection (1) of section nineteen of the Education Act, 1921, and for purposes consequential on such amendment.

[18th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In subsection (1) of section nineteen of the Education Act, 1921, the words from “but a school” to the end of the subsection shall be repealed, and in lieu thereof the following provisions of this section shall have effect.

Amendment
of s. 19 of
Education
Act, 1921.
11 & 12
Geo. 5. c. 51.

(2) Where a dispute whether a school which is for the time being recognised as a public elementary school (in this section referred to as “the school under consideration”), is necessary or not falls to be determined